NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

C.A. (CAA) No. 02/GB/2022

Coram:
Hon'ble Shri Rohit Kapoor, Member (J): Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conference

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 16.06.2022

Name of the Company: Anuneet Commodeal Pvt. Ltd.
Arunesh Vinimay Pvt. Ltd.
Everest Infonet Ltd.
Kavish Marketing Pvt. Ltd.
Sthirlakshmi Merchants Pvt. Ltd.
And
Shree Vihar Housing & Developers Pvt. Ltd.

Section: Under Section 230 to 232 of Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	NONE	-	Petitioners	Present in Video Conference

ORDER

The Applicant is represented through respective learned counsel(s).

The case is fixed for pronouncement of order.

The order is pronounced in the open court, vide separate sheet

Sd/-
(**Prasanta Kumar Mohanty)**
Member (Technical)

Sd/-
(Rohit Kapoor)
Member (Judicial)

NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

C.A. (CAA) No. 02/GB/2022

In the matter of:

ANNUNEET COMMODEAL PRIVATE LIMITED (ACPL)
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U52190WB2012PTC176825)
And having Registered Office at 98, Christopher Road,
Vrindavan garden, Block B2, 9th Floor, Kolkata 700046.

... **Transferor Company No. 1**

AND

ARUNESH VINIMAY PRIVATE LIMITED (AVPL)
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U52190WB2012PTC176080)
And having Registered Office at Christopher Road,
Vrindavan garden, Block B2, 9th Floor, Kolkata 700046.

... **Transferor Company No. 2**

AND

EVEREST INFONET PRIVATE LIMITED (EIPL)
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U74999AS2009PTC017443)
And having Registered Office at Bamunimaidam Industrial Area
Kamrup, Guwahati, Assam 781021.

...Transferor Company No. 3/ Applicant Company No. 1

AND

KAVISH MARKETING PRIVATE LIMITED (KMPL)
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U51909AS2009PTC017448)
And having Registered Office at Bamunimaidam Industrial Area
Kamrup, Guwahati, Assam 781021.

...Transferor Company No. 4/ Applicant Company No. 2

AND

STHIRLAKSHMI MERCHANTS PRIVATE LIMITED (SMPL)
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U67120WB1995PTC068507)
And having Registered Office at 5, Clive Row, 8th Floor,

Room No. O, Kolkata 700001

... Transferor Company No. 5

AND

SHREE VIHAR HOUSING & DEVELOPERS PRIVATE LIMITED (SVHDPL)
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U70101WB1991PTC053821)
And having Registered Office at 5, Clive Row, 8th Floor,
Room No. O, Kolkata 700001

... Transferee Company No. 6

In the matter of:

1. EVEREST INFONET PRIVATE LIMITED (EIPL)— Applicant Company No. 1

2. KAVISH MARKETING PRIVATE LIMITED (KMPL)— Applicant Company No. 2

Order delivered on 16/06/2022

Coram: Hon'ble Shri Rohit Kapoor, Member (J)
Hon'ble Shri Prasanta Kumar Mohanty, Member (T)

O R D E R
[Per se: Hon'ble Shri Rohit Kapoor, Member (J)]

1. The instant application has been filed in the first stage of the proceedings under Section 230(1) read with Section 232(1) of the Companies Act, 2013 for orders and directions with regard to dispensation of meetings of shareholders and creditors in connection with the Scheme of Amalgamation of **Anuneet Commodeal Private Limited** (Transferor Company No. 1/ACPL); **Arunesh Vinimay Private Limited** (Transferor Company No. 2/AVPL); **Everest Infonet Private Limited** (Transferor Company No. 3 or Applicant Company No. 1 or EIPL); **Kavish Marketing Private Limited** (Transferor Company No.4 or Applicant Company No. 2 or KMPL) and **Sthir Lakshmi Merchants Private Limited** (Transferor Company No. 5) with **Shree Vihar Housing & Developers Private Limited** (Transferee Company) whereby and where under the Transferor Companies are proposed to be amalgamated with the Transferee Company from the **Appointed Date viz. 01 April, 2021** in the manner and on

the terms and conditions stated in the said Scheme of Amalgamation **('Scheme') seeking the following reliefs:**

a. Dispensing with the convening and holding of the meetings of Equity Shareholders of both the Applicant Companies in view of written consents given by each of the shareholders of the applicant companies and also to dispense with the requirement of issuance and publication of notices of such meeting in newspaper. Alternatively, directions may be given as to the method of convening, holding and conducting the said meetings of Unsecured Creditors as stated below at the Registered Office of the Transferee Company i.e. 5, Clive Row, 8th Floor, Kolkata-700001, West Bengal or at such other place as this Hon'ble Tribunal may deem fit:

i. Appointing Mr. Rahul Soni, the Director of both the Applicant Companies as Chairman of the meetings;

ii. Fixing the quorum and the procedure to be followed at the meetings or meetings, including voting in person or by proxy/Authorized Representative;

iii. Determining the class/values of the members, or the members of any class, as the case may be, whose meetings have to be held;

iv. Joint Advertisement/publication of notice of meetings in Sentinel (Guwahati) in English and Agradoot (Guwahati) in Assamese or any other newspaper as deemed fit and proper;

v. Dispatch of Notice of the meeting or meetings by speed post and/or courier and/or email and/or hand delivery;

vi. Chairperson of the respective meeting may be directed to file report within 15 days from the date of meeting and copies of the said report be also delivered to the respective Applicant companies;

vii. Notices and advertisements may be settled by any officer of NCLT, as deem fit and proper;

b. Dispensing with the convening of meetings of the Secured Creditors of both the Applicant Companies in view of the fact that there are NIL Secured Creditors in both the Applicant Companies and also to dispense with the requirement of issuance and publication of notices of such meeting in newspapers.

c. Dispensing with the convening of meeting of the 1(One) Unsecured Creditors of the Applicant Company No. 1/EIPL and 1 (One) Unsecured Creditor of Applicant Company No. 2 /KMPL in view of the fact that they have given their consent and also to dispense with the requirement of issuance and publication of notices of such meeting in newspapers. Alternatively, directions may be given as to the method of convening, holding and conducting the said meetings of Shareholders as stated below at the Registered Office of the Transferee Company i.e. 5, Clive Row, 8th Floor, Kolkata-700001, West Bengal or at such other place as this Hon'ble Tribunal may deem fit:

i. Appointing Mr. Rahul Soni, the Director of both the Applicant Companies as Chairman of the meetings,

ii. Fixing the quorum and the procedure to be followed at the meetings or meetings, including voting in person or by proxy/Authorized Representative;

iii. Determining the class/values of the members, or the members of any class, as the case may be, whose meetings have to be held;

iv. Joint Advertisement/publication of notice of meetings in Sentinel (Guwahati) in English and Agradoot (Guwahati) in Assamese or any other newspaper as deemed fit and proper;

v. Dispatch of Notice of the meeting or meetings by speed post and/or courier and/or email and/or hand delivery;

vi. Chairperson of the respective meeting may be directed to file report within 15 days from the date of meeting and copies of

the said report be also delivered to the respective Applicant companies;

vii. Notices and advertisements may be settled by any officer of NCLT, as deem fit and proper;

d. Direction be given upon the Applicant Companies for filing the Confirmation Petition for sanction of the Scheme of Amalgamation pursuant to Rule 15 of Companies (Compromises, Arrangements and Amalgamations) Rules, 2016;

e. Necessary directions may be given as to issue of notices under sub-section (5) of Section 230 to the following authorities:

i. Central Government through the Regional Director (NER), Ministry of Corporate Affairs;

ii. Registrar of Companies, Guwahati, Assam;

iii. Official Liquidator, Guwahati, Assam;

iv. Income Tax Authority **having jurisdiction where the Applicant Companies are assessed;**

v. Other authority, if any, as the Hon'ble Tribunal may deem fit and proper.

Except the above, no other authorities are required to be given any notice as they are not likely to be affected by the Scheme of Amalgamation. Further, provisions of Competition Act, 2022 are not applicable and hence service of Company Application to Competition Commission of India is not required.

f. Such further order or orders be made and/or direction or directions be given as to this which the Hon'ble Tribunal may deem fit and proper;

2. Briefly stated that:

2.1 The registered offices of the Transferor Companies nos. 1, 2 and 5 and the Transferee Company are situated in the state of West Bengal within the territorial jurisdiction of the Learned National Company Law

Tribunal, Kolkata Bench. Transferor Companies No. 1, 2 and 5 and the Transferee Company have filed an application before the Learned Tribunal, Kolkata Bench.

2.2 The benefits/reasons that have necessitated and/or justified the said Scheme of Amalgamation are, inter alia as follows:

a) Reduce overheads and administrative, managerial and other expenditure;

b) Provide greater efficiency and more optimal utilization of resources;

c) Reduce legal and regulatory compliances;

d) Create enhanced value for all stakeholders of the respective companies;

e) Reorganize businesses to optimize for operational efficiency, rationalize for cost and streamline for growth providing enhanced resources and economies of scale. **The merged entities shall be registered as non-banking finance company with the Reserve Bank of India.**

2.3 A copy of the Scheme of Amalgamation, for which this joint application is filled for sanctioning, has been annexed with the application and marked as **Annexure "M"** and the terms and conditions of the Scheme are set out in the Scheme of Amalgamation, a copy of which is annexed as mentioned herein above.

3. The Petitioner/Applicant Companies have made the following submissions that:

3.1 The Board of Directors of all the Applicant Companies have, at their respective meetings held on 23rd August 2021, by resolutions passed unanimously, approved the said Scheme of Amalgamation.

3.2 The total number of Equity Shareholders in the **Everest Infonet Private Limited-** Transferor Company No. 3 or Applicant Company No. 1 is 3 (Three) as on 31.07.2021. All the shareholders of the **Everest**

Infonet Private Limited- Transferor Company No. 3 have given their written consents by way of affidavits to the proposed Scheme of Amalgamation.

3.3 The total number of Equity Shareholders in the **Kavish Marketing Private Limited**- Transferor Company No.4 or Applicant Company No. 2 is 3 (Three) as on 31.07.2021. All the shareholders of the **Kavish Marketing Private Limited**- Transferor Company No.4 or Applicant Company No. 2 have given their written consents by way of affidavit to the proposed Scheme of Amalgamation.

3.4 **Everest Infonet Private Limited-** Transferor Company No. 3 or Applicant Company No. 1 has **Nil Secured Creditors** as on 31.07.2021. Further it has 1(One) Unsecured Creditor as on 31.07.2021. The Unsecured Creditor has given its affidavit cum consent.

3.5 **Kavish Marketing Private Limited**- Transferor Company No.4 or Applicant Company No. 2 has **NIL Secured Creditors** as on 31.07.2021. Further **Kavish Marketing Private Limited**- Transferor Company No.4 or Applicant Company No. 2 has 1 (One) Unsecured Creditors as on 31.07.2021. The Unsecured Creditor has given its affidavit cum consent.

3.6 The Share Exchange Ratio has been arrived at, on the basis of the valuation reports by Mr. Manish Gadia, Registered Valuer, having Registration No. IBBI/RV/06/2019/11646, to determine Share Exchange ratio for the transfer and vesting of the Transferor Companies into Transferee Company.

3.7 Both the Applicant Companies have obtained certificate of their respective Statutory Auditors, dated 06th September 2021, to the effect that the accounting treatment contained in the Scheme is in compliance with applicable Accounting Standards specified under Companies Act, 2013 pursuant to Section 133 of the Act read with Rule 7 of Companies (Accounts) Rules, 2014 and other generally accepted accounting principles.

3.8 The aggregate assets of the Transferor and Transferee Companies are more than sufficient to meet their aggregate liabilities. The said Scheme will not adversely affect the rights of any of the creditors, of the Transferor Companies and Transferee Company in any manner whatsoever as due provisions have been made for payment of all liabilities as and when the same falls due in usual course. There is no Scheme of Compromise or Arrangement entered into with the Creditors and that there are no debenture-holders in the Transferor and Transferee Companies.

3.9 There are no investigation or proceedings pending under section 210, 212, 213, 214, 215, 216, 217, 218, 219, 220, 221, 222, 223, 224 and 225 of the Companies Act, 2013 and/or sections 235 to 251 of the Companies Act, 1956 against the Applicant Companies.

3.10 The Declaration u/s 29A of the IBC, 2016 on behalf of both the Applicant Companies/Transferor Companies has been filed on 22.04.2022.

4. The Applicant Companies further submit that no prejudice would be cause to any one, if an order is made and/or directions are given as prayed for hereinabove and hence, appropriate orders/ directions be passed by this Tribunal for serving notice upon:

i. Central Government through Regional Director, North Eastern Region, Ministry of Corporate Affairs, Guwahati
ii. The Registrar of Companies, Guwahati
iii. The Official Liquidator, Guwahati
iv. The Income Tax Authorities, having jurisdiction over the affairs of the Company.

ORDER

5. Having heard the learned counsel for the Applicant Companies and by considering the consent affidavits filed on behalf of the equity shareholders as well as by the lone unsecured creditor of both the Applicant Companies to

approve the proposed Company Scheme and by waiving their rights to participate in such meeting, **the meetings of the Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies are hereby dispensed with.**

6. Therefore, in our view, the present Company Application deserves to be allowed. Accordingly, it is allowed in terms of the prayer clause and subject to following directions:

6.1 The Applicant Companies to issue a notice, in Form No. CAA.3 along with disclosures mentioned under Rule 6, as per the provisions of Section 230 (5) read with Rule 8 of the Companies Act, to

i. The Central Government through the Regional Director, North Eastern Region, Guwahati,
ii. The Registrar of Companies, Guwahati
iii. The Official Liquidator, Guwahati
iv. The Income Tax Authority concerned having jurisdiction over the affairs of the Company

by informing that their representations, if any, to be made within a period of 30 days from the date of receipt of such notice, failing which it would be presumed that they have no objection to make on the proposed Company Scheme/ proposal. Such notices shall be sent forthwith by registered post or by speed post or by courier or by hand delivery at the office of the above authorities as required by sub-rule (2) of the Rule 8 of the Companies (CAA) Rules, 2016. The aforesaid authorities who desire to make any representation under sub-section (5) of Section 230, shall send the same to the Tribunal within a period of 30 (Thirty) days from the date of receipt of such notice, failing which it would be deemed that they have no representation to make on the proposed arrangement/proposals.

6.2 The Applicants have to file an affidavits proving service of notices to all statutory/sectorial authorities and compliance of all directions contained herein within two weeks after such services.

7. The Transferee Company is a NBFC and the Applicants, as submitted, have sent letter to the RBI for their clearance to the proposed merger proposal. Hence, it is made clear that the Petitioners are to file the permission letter of the RBI before the Second Motion petition is filed by the Applicants.

8. With the aforesaid directions/observations, the present Company Application, being first motion petition i.e. **CA (CAA) No. 2/GB/2022 stands allowed, in terms of its prayer clause and disposed of**.

9. Certified copy of this order may be issued, if applied for, upon compliance of all requisite formalities.

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Rohit Kapoor)
Member (Judicial)